

CHAPTER XVI.

Summary Decrees and Decretal Orders.

The Orders of 1845 have effected an entire change in the practice in suits merely for account, and in suits for the foreclosure and redemption of mortgages.

1850.
LXXVI.
Short Bill, in
suits for ac-
count,

and partly for
other purposes.

In suits for ac-
count, and
foreclosure and
redemption
suits, a decree
for reference,
on motion,

In suits for an account it shall not be necessary or proper to state in the pleadings any mere matter of charge or discharge ; neglect or misconduct in the accounting party may be insisted on in the Master's office, though not stated in the pleadings. Provided always, that nothing herein shall be construed to exempt the plaintiff from the necessity of showing upon his bill that the defendant is an accounting party, or from stating all such facts as may be necessary to enable the Court to determine the rights of all parties, and to adjudicate upon the whole case. Provided, also, that this order shall apply, whether the suit is for an account merely, or for an account and other purposes ; but, in the latter case, it shall apply only so far as the suit is one for an account, and this order shall not interfere with the rules of pleading further or otherwise than is expressly provided.

In suits for an account, or where an account is necessary before the Court can proceed to the ultimate decision of the case, and where the state of such account only, and not the accountability of the defendant, is the matter in question ; and in suits for the redemption and foreclosure of mortgages, where the state of the account, or the state of the account and the priority of the incumbrances form the only subject for enquiry, the plaintiff may apply to the Court, at any time after bill filed, but not earlier than fourteen days after service of the subpoena to appear upon the defendant, or upon the last of several defendants, by motion (of which notice may be served, together with

SUM

the subpoena
matter m
ceeded w
Court ma
within the
cree as w
to a hear
nounced
further d
circumsta
shall be a
have bee
usual way
proceede
to ordina
in proces
all the p
exercised
pronounc
Court ;
such ref
upon fur
cree and
the same
purposes
establish
aforesaid
ordered
In sui
the time
shall in
ter's rep
three m
cessive
shall no